United States Courts
Southern District of Texas
FILED

AUG 18 2023

Nathan Ochsner, Clerk of Court

Fill in this information to identify the case:

Debtor 1 Instant Brands, LLC

Debtor 2 (Spouse, if filing) _____

United States Bankruptcy Court for the: Southern District of Texas

Case number 23-90715

Filed: USBC - Southern District of Texas
Instant Brands Acquisition Holdings Inc., et al.
23-90716 (DRJ) (CLM)

INB

0000000064

Official Form 410

Proof of Claim

04/16

Read the instructions before filling out this form. This form is for making a claim for payment in a bankruptcy case. Do not use this form to make a request for payment of an administrative expense. Make such a request according to 11 U.S.C. § 503.

Filers must leave out or redact information that is entitled to privacy on this form or on any attached documents. Attach redacted copies of any documents that support the claim, such as promissory notes, purchase orders, invoices, itemized statements of running accounts, contracts, judgments, mortgages, and security agreements. Do not send original documents; they may be destroyed after scanning. If the documents are not available, explain in an attachment.

A person who files a fraudulent claim could be fined up to $500,000, imprisoned for up to 5 years, or both. 18 U.S.C. §§ 152, 157, and 3571.

Fill in all the information about the claim as of the date the case was filed. That date is on the notice of bankruptcy (Form 309) that you received.

Part 1: Identify the Claim

1. Who is the current creditor?

Old Dominion Freight Line, Inc.
Name of the current creditor (the person or entity to be paid for this claim)

Other names the creditor used with the debtor _____

2. Has this claim been acquired from someone else?

☑ No
☐ Yes. From whom? _____

3. Where should notices and payments to the creditor be sent?

Federal Rule of Bankruptcy Procedure (FRBP) 2002(g)

Where should notices to the creditor be sent?	Where should payments to the creditor be sent? (if different)
Rusty Frazier, Asset Recovery Analyst Name	_____ Name
500 Old Dominion Way Number Street	_____ Number Street
Thomasville NC 27360 City State ZIP Code	_____ City State ZIP Code
Contact phone 336-822-1732	Contact phone _____
Contact email rusty.frazier@odfl.com	Contact email _____

Uniform claim identifier for electronic payments in chapter 13 (if you use one):

_ _

4. Does this claim amend one already filed?

☑ No
☐ Yes. Claim number on court claims registry (if known) _____ Filed on _____ MM / DD / YYYY

5. Do you know if anyone else has filed a proof of claim for this claim?

☑ No
☐ Yes. Who made the earlier filing? _____

Part 2: Give Information About the Claim as of the Date the Case Was Filed

6. Do you have any number you use to identify the debtor?

☐ No
☑ Yes. Last 4 digits of the debtor's account or any number you use to identify the debtor: 9 3 8 2 and 0674

7. How much is the claim? $ 33,760.41 . **Does this amount include interest or other charges?**

☑ No
☐ Yes. Attach statement itemizing interest, fees, expenses, or other charges required by Bankruptcy Rule 3001(c)(2)(A).

8. What is the basis of the claim?

Examples: Goods sold, money loaned, lease, services performed, personal injury or wrongful death, or credit card.

Attach redacted copies of any documents supporting the claim required by Bankruptcy Rule 3001(c).

Limit disclosing information that is entitled to privacy, such as health care information.

unpaid freight transportation charges

9. Is all or part of the claim secured?

☑ No
☐ Yes. The claim is secured by a lien on property.

Nature of property:

☐ Real estate. If the claim is secured by the debtor's principal residence, file a *Mortgage Proof of Claim Attachment* (Official Form 410-A) with this *Proof of Claim.*
☐ Motor vehicle
☐ Other. Describe: _____

Basis for perfection: _____

Attach redacted copies of documents, if any, that show evidence of perfection of a security interest (for example, a mortgage, lien, certificate of title, financing statement, or other document that shows the lien has been filed or recorded.)

Value of property: $_____

Amount of the claim that is secured: $_____

Amount of the claim that is unsecured: $_____ (The sum of the secured and unsecured amounts should match the amount in line 7.)

Amount necessary to cure any default as of the date of the petition: $_____

Annual Interest Rate (when case was filed) _____%

☐ Fixed
☐ Variable

10. Is this claim based on a lease?

☑ No
☐ Yes. **Amount necessary to cure any default as of the date of the petition.** $_____

11. Is this claim subject to a right of setoff?

☑ No
☐ Yes. Identify the property: _____

12. Is all or part of the claim entitled to priority under 11 U.S.C. § 507(a)?

A claim may be partly priority and partly nonpriority. For example, in some categories, the law limits the amount entitled to priority.

☑ No

☐ Yes. *Check one:*

	Amount entitled to priority
☐ Domestic support obligations (including alimony and child support) under 11 U.S.C. § 507(a)(1)(A) or (a)(1)(B).	$
☐ Up to $2,850* of deposits toward purchase, lease, or rental of property or services for personal, family, or household use. 11 U.S.C. § 507(a)(7).	$
☐ Wages, salaries, or commissions (up to $12,850*) earned within 180 days before the bankruptcy petition is filed or the debtor's business ends, whichever is earlier. 11 U.S.C. § 507(a)(4).	$
☐ Taxes or penalties owed to governmental units. 11 U.S.C. § 507(a)(8).	$
☐ Contributions to an employee benefit plan. 11 U.S.C. § 507(a)(5).	$
☐ Other. Specify subsection of 11 U.S.C. § 507(a)(__) that applies.	$

* Amounts are subject to adjustment on 4/01/19 and every 3 years after that for cases begun on or after the date of adjustment.

Part 3: Sign Below

The person completing this proof of claim must sign and date it. FRBP 9011(b).

If you file this claim electronically, FRBP 5005(a)(2) authorizes courts to establish local rules specifying what a signature is.

A person who files a fraudulent claim could be fined up to $500,000, imprisoned for up to 5 years, or both. 18 U.S.C. §§ 152, 157, and 3571.

Check the appropriate box:

☑ I am the creditor.

☐ I am the creditor's attorney or authorized agent.

☐ I am the trustee, or the debtor, or their authorized agent. Bankruptcy Rule 3004.

☐ I am a guarantor, surety, endorser, or other codebtor. Bankruptcy Rule 3005.

I understand that an authorized signature on this *Proof of Claim* serves as an acknowledgment that when calculating the amount of the claim, the creditor gave the debtor credit for any payments received toward the debt.

I have examined the information in this *Proof of Claim* and have a reasonable belief that the information is true and correct.

I declare under penalty of perjury that the foregoing is true and correct.

Executed on date 08/14/2023
MM / DD / YYYY

Rusty Frazier /Rusty Frazier
Signature

Print the name of the person who is completing and signing this claim:

Name: Rusty Frazier
First name Middle name Last name

Title: Asset Recovery Analyst

Company: Old Dominion Freight Line, Inc.
Identify the corporate servicer as the company if the authorized agent is a servicer.

Address: 500 Old Dominion Way
Number Street

Thomasville NC 27360
City State ZIP Code

Contact phone: 336-822-1732 Email: rusty.frazier@odfl.com

Date: 7/28/23
Time: 14:30:27

Old Dominion Freight Line,Inc.
Statement of Account by Pro Detail Report
Include All Pros
Excluded Credit Balances

Program: RVAR0311
User Id: E090235
Page: 1

Account No: 13799382 INSTANT BRANDS LLC

In ***** U S DOLLAR *****

Pro Number	Pro Date	Freight Charges	Assessed LIQD	Net Cash Posted	Misc Adj	Remaining Frt Charges	Remaining LIQD	Total Open AR
02909233815	2/01/23	627.44	.00	.00	.00	627.44	.00	627.44
07709575711	6/05/23	556.24	.00	.00	.00	556.24	.00	556.24
14746127910	5/25/23	276.70	.00	.00	.00	276.70	.00	276.70
19401047170	6/20/23	2,222.19	.00	.00	.00	2,222.19	.00	2,222.19
28104072385	6/07/23	548.75	.00	.00	.00	548.75	.00	548.75
32505643968	6/07/23	537.33	.00	.00	.00	537.33	.00	537.33
34502371353	2/08/23	857.40	.00	.00	.00	857.40	.00	857.40
39500600380	5/31/23	2,102.48	.00	.00	.00	2,102.48	.00	2,102.48
39500600406	6/05/23	141.36	.00	.00	.00	141.36	.00	141.36
59665752230	6/02/23	231.89	.00	.00	.00	231.89	.00	231.89
59665752255	6/02/23	199.45	.00	.00	.00	199.45	.00	199.45
59665752263	6/09/23	219.30	.00	.00	.00	219.30	.00	219.30
59665752271	6/09/23	207.20	.00	.00	.00	207.20	.00	207.20
59665752289	6/09/23	180.90	.00	.00	.00	180.90	.00	180.90
59665752297	6/12/23	971.97	.00	.00	.00	971.97	.00	971.97
59679575841	5/31/23	1,703.02	.00	.00	.00	1,703.02	.00	1,703.02
59679575882	6/02/23	974.87	.00	.00	.00	974.87	.00	974.87
59679575890	6/01/23	704.02	.00	.00	.00	704.02	.00	704.02
59679575932	6/07/23	506.11	.00	.00	.00	506.11	.00	506.11
59679575940	6/07/23	1,369.93	.00	.00	.00	1,369.93	.00	1,369.93
59679575957	6/07/23	1,424.90	.00	.00	.00	1,424.90	.00	1,424.90
59679575965	6/07/23	728.71	.00	.00	.00	728.71	.00	728.71
59679575973	6/08/23	444.13	.00	.00	.00	444.13	.00	444.13
59679575981	6/07/23	439.83	.00	.00	.00	439.83	.00	439.83
59679575999	6/07/23	167.14	.00	.00	.00	167.14	.00	167.14
59679576005	6/07/23	162.74	.00	.00	.00	162.74	.00	162.74
59679576013	6/09/23	1,604.18	.00	.00	.00	1,604.18	.00	1,604.18
59679576021	6/07/23	220.55	.00	.00	.00	220.55	.00	220.55
59679576039	6/08/23	481.34	.00	.00	.00	481.34	.00	481.34
59679576047	6/12/23	996.09	.00	.00	.00	996.09	.00	996.09
59679576054	6/09/23	479.60	.00	.00	.00	479.60	.00	479.60
59701499846	5/31/23	214.34	.00	.00	.00	214.34	.00	214.34
59701499879	5/26/23	152.24	.00	.00	.00	152.24	.00	152.24
59701499945	5/30/23	256.12	.00	.00	.00	256.12	.00	256.12
59701499994	5/31/23	747.15	.00	.00	.00	747.15	.00	747.15
59701500007	5/31/23	304.63	.00	.00	.00	304.63	.00	304.63
59701500056	6/01/23	351.26	.00	.00	.00	351.26	.00	351.26
59701500064	6/01/23	521.84	.00	.00	.00	521.84	.00	521.84
59701500130	6/05/23	405.19	.00	.00	.00	405.19	.00	405.19
59701500148	6/07/23	176.65	.00	.00	.00	176.65	.00	176.65
59701500163	6/05/23	525.16	.00	.00	.00	525.16	.00	525.16
59701500171	6/05/23	320.58	.00	.00	.00	320.58	.00	320.58
59701500221	6/08/23	185.74	.00	.00	.00	185.74	.00	185.74
59701500239	6/08/23	309.31	.00	.00	.00	309.31	.00	309.31
59701500247	6/07/23	157.87	.00	.00	.00	157.87	.00	157.87
59701500262	6/06/23	769.17	.00	.00	.00	769.17	.00	769.17
59701500270	6/07/23	212.20	.00	.00	.00	212.20	.00	212.20
59701500288	6/08/23	788.10	.00	.00	.00	788.10	.00	788.10

Account No: 13799382 INSTANT BRANDS LLC

In ***** U S DOLLAR *****

Pro Number	Pro Date	Freight Charges	Assessed LIQD	Net Cash Posted	Misc Adj	Remaining Frt Charges	Remaining LIQD	Total Open AR
59701500304	6/08/23	205.29	.00	.00	.00	205.29	.00	205.29
59701500312	6/08/23	459.73	.00	.00	.00	459.73	.00	459.73
59701500320	6/08/23	757.61	.00	.00	.00	757.61	.00	757.61
59701500338	6/08/23	663.84	.00	.00	.00	663.84	.00	663.84
59701500353	6/09/23	443.21	.00	.00	.00	443.21	.00	443.21
59701500361	6/12/23	482.74	.00	.00	.00	482.74	.00	482.74
	** Totals:	31,697.73	.00	.00	.00	31,697.73	.00	31,697.73

Total No of Pros: 54

***** End of Report *****

Date: 7/28/23
Time: 14:30:16

Old Dominion Freight Line,Inc.
Statement of Account by Pro Detail Report
Include All Pros
Excluded Credit Balances

Program: RVAR0311
User Id: E090235
Page: 1

Account No: 13780674 INSTANT BRANDS LLC

In ***** U S DOLLAR *****

Pro Number	Pro Date	Freight Charges	Assessed LIQD	Net Cash Posted	Misc Adj	Remaining Frt Charges	Remaining LIQD	Total Open AR
32505944077	6/12/23	239.01	.00	.00	.00	239.01	.00	239.01
59701494755	2/02/23	1,012.82	.00	.00	.00	1,012.82	.00	1,012.82
59701494797	2/03/23	762.05	.00	.00	.00	762.05	.00	762.05
80998115044	1/13/23	589.37	.00	540.57-	.00	48.80	.00	48.80
	** Totals:	2,603.25	.00	540.57-	.00	2,062.68	.00	2,062.68

Total No of Pros: 4

* * * * * End of Report * * * * *

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